

National Parks and Wildlife Conservation Act, 1973

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Amending Acts

1. National Parks and Wildlife Conservation (First Amendment) Act, 2031 2031.06.20
2. National Parks and Wildlife Conservation (Second Amendment) Act, 2039 2039.09.08
3. National Parks and Wildlife Conservation (Third Amendment) Act, 2046 2046.06.11
4. Judicial Administration Act, 2048 2048.02.16
5. National Parks and Wildlife Conservation (Fourth Amendment) Act, 2049 2050.02.27

Ratification and Publication Dates

6. Some Nepal Acts Revival Act, 2063 2063.04.23
7. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.07
8. Some Nepal Acts Amendment Act, 2072 2072.11.13
9. National Parks and Wildlife Conservation (Fifth Amendment) Act, 2073 2073.12.17
10. Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074 2074.06.30
11. Some Nepal Acts Amendment Act to Make Conformable with the Constitution of Nepal, 2075 2075.11.19
12. Some Nepal Acts Amendment Act Relating to the Civil Code, 2075 2076.01.02
13. Some Nepal Acts Amendment Act Relating to Investment Facilitation, 2081 2081.03.24
14. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act No. 20 of the Year 2029

An Act Made to Conserve National Parks and Wildlife

Preamble: Whereas, it is expedient to maintain the morality and convenience of the general public by making provision for national parks, conservation of wildlife and their habitat, control of hunting, and by protecting, promoting, developing, and making proper arrangements and use of places of special importance from the perspective of natural beauty,

Be it enacted by His Majesty King Mahendra Bir Bikram Shah Deva, with the advice and consent of the Rashtriya Panchayat. 1. Short Title, Extent and Commencement: (1) This Act shall be called the "National Parks and Wildlife Conservation Act, 2029".

(2) This Act shall apply throughout Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066..

(3) This Act shall come into force from the date specified by the Government of Nepal by notification published in the Nepal Gazette. This Act is specified to come into force from the date 2030.06.04 (Nepal

Gazette dated 2030.6.4). 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "National Park" means an area set aside for the conservation, management and use of wildlife, vegetation and landscape along with the natural environment.

(b) "Strict Natural Reserve" means an area set aside for scientific study, or an area of ecological importance or otherwise significant.

(c) "Wildlife Reserve" means an area set aside for the conservation and management of wildlife resources and their habitat.

(d) "Hunting Reserve" means an area set aside for the management of wildlife resources to allow hunters to hunt.

(e) "Reserve" means Deleted by the Second Amendment. Strict Natural Reserve, Wildlife Reserve and Hunting Reserve.

Added by the Third Amendment.(e1) "Conservation Area" means an area managed according to an integrated plan for the conservation of the natural environment and the balanced use of natural resources.

Added by the Fourth Amendment.(e2) "Buffer Zone" means an area specified under Section 3a. surrounding a National Park or Reserve to provide facilities to local people to regularly consume forest products. Added by the Fifth Amendment.(e3) "Biological Corridor" means a route through which wildlife moves from one habitat to another. Amended by the Second Amendment.(f) "Wildlife" means mammals, birds, reptiles, fish, amphibians and insects of any kind except domesticated animals, and the said term also includes the eggs of egg-laying animals. Added by the Fifth Amendment.(f1) "Specimen" means wildlife or forest products collected from a National Park, Reserve, Conservation Area or Buffer Zone, or any part or portion thereof, and the said term also means wildlife collected from wildlife habitat outside a National Park, Reserve, Conservation Area or Buffer Zone, or any part or portion thereof. Added by the Fifth Amendment.(f2) "Zoo" means a place managed by displaying animals ex-situ for the purpose of conservation education, recreation, breeding, genetic resource conservation, study and research, and the said term also includes zoological garden established according to international practice. (g) "Weapons" means any kind of gun, pistol or similar firearms, bow and arrow, spear, knife, trap, snare, catapult or any weapon that can cause injury. (h) "Hunting" means chasing, capturing, harming, killing or attempting to do so of any wildlife by any means, or extracting or destroying any part of its body, or extracting, destroying or disturbing its eggs or nests. (i) "Trophy" means Amended by the Fifth Amendment. the live or dead body of wildlife or any recognizable part of its body, and the said term also includes any substance from the body of wildlife or any object prepared from the mixture of such substance. (j) "Authorized Officer" means an officer specified by the Government of Nepal by notification published in the Nepal Gazette. Added by the Fourth Amendment.(j1) "Conservator" means a person appointed by the Government of Nepal for the conservation and management of a National Park, Reserve, Conservation Area or Buffer Zone. Added by the Fifth Amendment.(j2) "Local People" means residents who have permanent settlement in a National Park, Reserve, Conservation Area or Buffer Zone. Added by the Some Nepal Acts Amendment Act, 2082.(j3) "Consumer Committee" means the Consumer Committee pursuant to Section 16g. (k) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. Amended by the Third Amendment.3.

Government of Nepal may declare National Park, Reserve or Conservation Area: (1) The Government of Nepal may, if it deems necessary, declare any area as a National Park, Reserve or Conservation Area by publishing a notification in the Nepal Gazette specifying its boundaries. Added by the Fifth Amendment.(1a)

The conservation and management of a National Park, Reserve or Conservation Area declared pursuant to sub-section (1) shall be carried out according to a management plan approved by the Department of National Parks and Wildlife Conservation. (2) A National Park, Reserve or Conservation Area once declared pursuant to sub-section (1) may be abandoned or its ownership transferred or its boundaries altered by the Government of Nepal by notification published in the Nepal Gazette. Added by the Fourth Amendment.3a. Buffer Zone may be specified: (1) The Government of Nepal may, by notification published in the Nepal Gazette, specify any area surrounding a National Park or Reserve as a Buffer Zone by delimiting its boundaries. (2) A Buffer Zone specified pursuant to sub-section (1) may be abandoned or its ownership transferred or its boundaries altered by the Government of Nepal by notification published in the Nepal Gazette. Amended by the Fifth Amendment.3b. Management and Conservation of Buffer Zone: (1) Activities relating to the management and conservation of a Buffer Zone shall be carried out by the Conservator in consultation with the concerned Consumer Committee according to a management plan approved by the Department of National Parks and Wildlife Conservation.

Provided that, while carrying out such management and conservation, the land ownership of local people in that area shall not be affected. (2) Industries, hotels, lodges, public transport or other services or facilities of similar nature may be operated in a Buffer Zone as prescribed, provided that they do not adversely affect the environment or cause harm to wildlife. (3) The Department of National Parks and Wildlife Conservation shall formulate and implement standards in relation to operating services or facilities pursuant to sub-section (2), after consulting with the concerned Consumer Committee. (4) The Conservator shall regularly monitor or cause to be monitored the services or facilities operated pursuant to sub-section (2). (5) While monitoring or causing to be monitored pursuant to sub-section (3), the Conservator shall, as far as possible, involve the concerned Consumer Committee. (6) If any family in a Buffer Zone faces a disaster and requires forest products, the Conservator shall, in consultation with the Consumer Committee, grant permission as prescribed to collect such forest products from any location within the Buffer Zone. Added by the Fifth Amendment.3b1. Security Arrangements: The Government of Nepal shall make necessary arrangements for the security of a National Park, Reserve, Conservation Area or Buffer Zone. Added by the Fourth Amendment.3c. Compensation to be provided: If any resident's house and land within a Buffer Zone falls within the natural boundary of a National Park or Reserve due to floods or landslides, and such resident's home is displaced, the concerned National Park or Reserve shall, upon the recommendation of the Consumer Committee formed pursuant to Section 16g, provide reasonable compensation to such person from the amount allocated for the community development of local people pursuant to Section 25a. Added by the Fifth Amendment.3d. Relief to be provided: If loss of life or property occurs due to wildlife attack outside a National Park or Reserve, relief shall be provided as prescribed for such loss. 4. Restriction on Entry into National Park: (1) No person shall enter a Amended by the Second Amendment. National Park or Reserve without an entry permit as prescribed or written permission from the authorized officer.

Provided that this sub-section shall not apply to a government employee on duty or a person Amended by the Second Amendment. with a right of way prevalent within a National Park or Reserve. (2) The format, type, fee and other conditions of the entry permit pursuant to sub-section (1) shall be as prescribed. Amended by the Fifth Amendment.5. Prohibited Activities within National Park or Reserve: (1) No person shall, without written permission from the authorized officer, do the following acts within a National Park or Reserve:- (a) To hunt wildlife or transport trophies, (b) To build or occupy any house, hut, shelter or other structure of any material, (c) To occupy, clear, settle, cultivate or grow or harvest any crop on any land, (d) To graze or water domesticated animals or birds, (e) To cut, fell, remove, obstruct trees, plants, bushes or any other forest products, or do any act causing them to dry, or to set fire or otherwise cause damage or loss to forest

products, or transport forest products, (f) To dig mines, quarry stones or remove any mineral substance, stones, gravel, soil or other similar substances, (g) To cause damage to forest products or wildlife, birds or land, (h) To carry or use weapons, ammunition or poison, (i) To carry domesticated or other kinds of animals or trophies, except government employees on duty or travelers on prevalent routes within the National Park or Reserve, and (j) To dam, divert or use any harmful or explosive substances in rivers, streams or any water source flowing within the National Park or Reserve. (2) Notwithstanding anything contained in sub-section (1), permission shall be granted to local people as prescribed to use traditionally enjoyed facilities such as right of way, indigenous grazing, drinking water, irrigation and embankment, and to collect traditionally collected wild vegetables and tubers and to fish, in parks or reserves according to their nature in a manner that does not adversely affect the environment, forest or wildlife. (3) If any family in a Buffer Zone faces a disaster and requires forest products, and if forest products collected pursuant to sub-section (6) of Section 3b from any location within the Buffer Zone are insufficient, the Conservator shall, in consultation with the Consumer Committee, grant permission as prescribed to collect such forest products from any location within the National Park or Reserve. Added by the Some Nepal Acts Amendment Act Relating to Investment Facilitation, 2081.5a.

May specify Highly Sensitive Area: The Government of Nepal may, if it deems necessary, specify any area within a National Park, Reserve or Conservation Area as a Highly Sensitive Area by publishing a notification in the Nepal Gazette. 6. Amended by the Fourth Amendment. Operation of Services within National Park or Reserve: (1) Amended by the Fourth Amendment. For the paramount interest of a National Park, Reserve or Conservation Area, the Government of Nepal may itself, or by adopting prescribed procedures, make contracts with any person to arrange hotels, lodges, public transport or other services or facilities of similar nature. Added by the Some Nepal Acts Amendment Act Relating to Investment Facilitation, 2081. (1a) Except for the area specified pursuant to Section 5a, the Government of Nepal may grant approval as prescribed to operate nationally prioritized projects, projects approved by the Investment Board, or projects of national pride in any area within a National Park, Reserve or Conservation Area or in a Buffer Zone, in a manner that maintains coexistence between nature and humans. The Federation, Province and Local Level may operate projects to be constructed in the Buffer Zone, and with the approval of the concerned authority, ecotourism and other industries and businesses may be allowed to operate. (2) No person shall operate any kind of service or facility within a Amended by the Fourth Amendment. National Park or Reserve or Conservation Area without a contract pursuant to sub-section (1). Added by the Fifth Amendment. 6a. May carry out maintenance: Any person, body, Consumer Committee or Amended by the Some Nepal Acts Amendment Act, 2072. Local Level may, with the consent of the Ministry of Forests and Land Conservation, carry out maintenance works of religious, historical, cultural or archaeological sites located within a National Park, Reserve, Conservation Area or Buffer Zone, without altering the basic structure. 7. Repealed by the Second Amendment. 8. Repealed by the Second Amendment. 9. Entry into National Park or Reserve at Own Risk: (1) Entry into a National Park or Reserve shall be at one's own risk. (2) In case of death, loss or damage, or injury to any person within a National Park or Reserve, the Government of Nepal shall not be liable for compensation for such death, loss, damage or injury. 10. Protected Wildlife: The wildlife mentioned in Schedule-1 of this Act shall be considered protected wildlife and hunting of them is prohibited.

Amended by the Second Amendment. Provided that? (a) Mad wild elephants, man-eating tigers, and wildlife that are incurably diseased or disabled may be killed or captured by order of the prescribed officer. (b) If it is determined that wildlife coming outside the forest area and causing great damage to humans or domesticated animals or birds needs to be killed, such wildlife may be killed, captured or chased away by order of the prescribed officer. 11. Hunting without License Prohibited: Amended by the Second Amendment. (1) No

person shall hunt wildlife without obtaining a license. Provided that a license shall not be required to hunt prescribed wildlife. (2) A person desiring to obtain a license pursuant to sub-section (1) shall submit an application to the prescribed officer in the prescribed format, and upon receipt of such application, the prescribed officer shall, upon payment of prescribed fees, issue a license of the prescribed format and type Amended by the Second Amendment. to hunt wildlife. (3) A person obtaining a license pursuant to sub-section (2) shall hunt subject to the conditions and methods as prescribed. (4) The prescribed officer may refuse to issue a license pursuant to sub-section (2) with or without assigning any reason. 12. Annual Quota for Hunting to be Determined: Based on periodic wildlife censuses, the prescribed officer shall determine the annual quota of wildlife to be hunted throughout the year in a Hunting Reserve. 13. Government of Nepal may revoke license: The Government of Nepal may, if it deems necessary, at any time revoke a license granted pursuant to Section 11 with or without assigning any reason. 14. Closed Season: The Government of Nepal may specify a closed season for hunting in an area specified by notification published in the Nepal Gazette, for the period specified in such notification. 15. License Required to Collect Specimens: (1) No person shall, without obtaining a license, collect specimens from a Amended by the Second Amendment. National Park, Reserve or other wildlife habitat for scientific research. (2) A person desiring to obtain a license pursuant to sub-section (1) shall submit an application in the prescribed format to the prescribed officer. (3) Upon receipt of an application pursuant to sub-section (2), the prescribed officer may, upon payment of prescribed fees, issue a license subject to conditions as prescribed to hunt any wildlife except those mentioned in Schedule-1, or to collect any insects, organisms, fish or any natural products. Added by the Fifth Amendment.15a.

Study, Research, Breeding and Rearing of Wildlife: (1) A person or institution desiring to study, research or commercially breed and rear wildlife with the aim of supporting the conservation, promotion and sustainable use of wildlife shall obtain permission as prescribed. (2) Seed animals required for breeding and rearing wildlife pursuant to sub-section (1) may be provided as prescribed. (3) Wildlife produced commercially or their parts or objects made from their parts, after obtaining permission pursuant to sub-section (1), may be used, sold, distributed or exported as prescribed. (4) Notwithstanding anything contained in sub-section (3), wildlife as prescribed shall not be transported from one place to another within Nepal, or exported to any country, or imported from any country, except in circumstances as prescribed. Added by the Fifth Amendment.15b. Wildlife may be provided for Research or Educational Exhibition: (1) If a renowned domestic or foreign association or institution conducting scientific study, research or educational exhibition of wildlife submits an application requesting any wildlife for the purpose of study, research or educational exhibition, along with a written commitment to contribute to the conservation, promotion and development of National Parks, Reserves, Conservation Areas or Buffer Zones and wildlife of Nepal, the Government of Nepal may provide wildlife to such institution for such purpose. (2) While providing any wildlife for study or research pursuant to sub-section (1), if the Government of Nepal considers that the results obtained from such study or research will also be useful for Nepal, it may provide such wildlife on condition that such results shall also be made available to Nepal. (3) The fees, conditions to be complied with, and other arrangements for providing wildlife pursuant to sub-section (1) shall be as prescribed. Added by the Fifth Amendment.15c. Zoo, Wildlife Rescue Centre and Wildlife Hospital may be established: (1) Any institution, body or Local Level may operate a zoo by obtaining a license as prescribed for the purposes of conservation education, recreation, breeding, genetic resource conservation, study and research. (2) Any person, institution or Local Level may establish a Wildlife Rescue Centre and Wildlife Hospital for the conservation and management of orphaned, helpless, problematic and rescued wildlife. (3) Other arrangements relating to the establishment and operation of zoos, Wildlife Rescue Centres and Wildlife Hospitals pursuant to sub-sections (1) and (2) shall be as prescribed.

Added by the Fifth Amendment.15d.

Conservation and Promotion of Biological Corridor: (1) The Government of Nepal may, if it deems necessary, declare any area outside a National Park, Reserve, Conservation Area or Buffer Zone as a Biological Corridor and, after consultation with the concerned Consumer Committee, make arrangements for its conservation and promotion. (2) Other arrangements relating to the conservation and promotion of a Biological Corridor shall be as prescribed. Added by the Fifth Amendment.15e. Wildlife may be provided to Foreign Countries: (1) If the government of any foreign country requests wildlife located in Nepal subject to prescribed conditions, the Government of Nepal may, if it deems appropriate from the perspective of conservation and management, provide such wildlife after completing the prescribed procedures. (2) The Ministry of Forests and Land Conservation shall submit an annual report of wildlife provided pursuant to sub-section (1) to the concerned committee of the Federal Parliament within three months of the end of each fiscal year. 16. Management of National Park or Reserve: If necessary for the proper management of a National Park or Reserve, the prescribed officer may carry out hunting, removal of any natural products or other similar necessary activities within the National Park or Reserve. Added by the Fifth Amendment.16a. Forest Products and Other Services may be provided: The prescribed officer may provide prescribed forest products or other services within a National Park or Reserve upon payment of prescribed fees. Amended by the National Parks and Wildlife Conservation (Fifth Amendment) Ordinance, 2062 and automatically revived by the Some Nepal Acts Revival Act, 2063.16b. Management of Conservation Area: The Government of Nepal may, by notification published in the Nepal Gazette, entrust the management of any Conservation Area declared pursuant to sub-section (1) of Section 3 to an institution established with the aim of conserving nature and natural heritage, for the period specified in such notification. Added by the Fourth Amendment.16c. Consumer Committee: (1) To manage fallen trees, dry wood, firewood and grass within a National Park, Reserve, Conservation Area or Buffer Zone, the concerned Conservator may form a Consumer Committee in coordination with the Amended by the Some Nepal Acts Amendment Act, 2072. Local Level. (2) Except as mentioned in sub-section (1), other functions, duties and powers of the Consumer Committee shall be as prescribed. 17.

Trophy to be Submitted to the License Issuing Officer: (1) A person obtaining a trophy according to the license obtained shall submit such trophy to the license issuing officer or the officer designated by him within twenty-four hours, excluding travel time, from the time of obtaining such trophy. (2) If the license issuing officer is satisfied that the trophy submitted pursuant to sub-section (1) has been obtained according to the license, he shall record it and, with a certificate as prescribed, return the entire body or parts of such wildlife to the person submitting it. Provided that if the license was granted on condition that the entire body or parts of the hunted wildlife belong to the Government of Nepal, it shall be according to that condition. 18. Trophy not to be Kept without Certificate: (1) A person who has obtained a trophy before the commencement of this Act shall Amended by the First Amendment. submit such trophy to the prescribed officer within the prescribed time limit and keep it after obtaining a certificate as prescribed. (2) A trophy kept without obtaining a certificate pursuant to sub-section (1) or sub-section (2) of Section 17 may be confiscated by the Government of Nepal. Amended by the Second Amendment.19. Sale, Distribution or Business of Trophy without License Prohibited: (1) No person shall sell, distribute or transfer in any manner any trophy, or carry on any business relating to trophies, without a license from the prescribed officer. (2) A person who has purchased from a person licensed pursuant to sub-section (1) or has acquired title through transfer of rights shall register such trophy with the prescribed officer within the prescribed time limit and keep it after obtaining a certificate of ownership. 20. Recommendation Required for Export or Import of Trophy: A person desiring to export any trophy from Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 to a

foreign country, or to import any trophy from a foreign country into Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 , according to prevailing Nepali law, shall obtain written recommendation from the Ministry of Forests and Environment, Amended by the Some Nepal Acts Amendment Act to Make Conformable with the Constitution of Nepal, 2075. Government of Nepal. Added by the Fifth Amendment.20a.

Trophy may be allowed to use or destroyed: (1) The Government of Nepal may allow trophies collected from wildlife that died due to natural or other causes, or confiscated according to prevailing law, to be used for educational or research purposes by educational or research institutions. (2) Trophies collected or confiscated pursuant to sub-section (1) may be kept for display in a Natural Science Museum. (3) Notwithstanding anything contained in sub-section (1) or (2), the Government of Nepal may destroy trophies that are not considered useful or necessary for conservation. (4) Other arrangements relating to allowing the use or destruction of trophies pursuant to this section shall be as prescribed. 21. Acts Necessary for Self-Defense Permitted: (1) For the protection of oneself or any other person or domesticated animal, if there is no other alternative against an actual and imminent attack by any wildlife, weapons may be used or any other measures may be taken, and if any wildlife dies or is injured as a result, it shall not be deemed an offense under this Act. (2) If any wildlife dies or is injured pursuant to sub-section (1), information thereof shall be given to the prescribed officer within twenty-four hours, excluding travel time. (3) A person acting contrary to this Act or the rules made under this Act shall not be entitled to the facility under sub-section (1). 22. Boundary Marks not to be Damaged: No person shall destroy, damage, disfigure, remove or otherwise obstruct boundary marks, fences, walls, signposts or notices of a Amended by the Fourth Amendment. National Park, Reserve, Conservation Area or Buffer Zone. 23. Power of Inspection and Search: If there is reasonable cause to believe that any person has done any act contrary to this Act, the prescribed officer may, upon obtaining a warrant from the prescribed officer, enter and search the house, land, premises and all types of vehicles of such person at any time, as necessary to seize evidence of such act or to arrest such person. Provided that, if obtaining a warrant to enter and search any house, land, premises or vehicle, or to arrest any offender, would take some time, and within that time the offender might escape or the evidence of the offense might be destroyed, the prescribed officer may also enter and search such house, land, premises or vehicle upon making a written record of such fact. Explanation: When entering and searching without a warrant under this section, an officer of a rank lower than the rank specified in Section 30 shall not do so.

Also, when entering or searching (Continued) without a warrant, if the offender is not arrested or evidence not recovered, the officer conducting the entry or search shall give a certificate of having conducted the entry or search to the person concerned with the entry or search, and shall also give written notice to the prescribed officer within fifteen days of the date of such entry or search, disclosing the reasons for such entry or search. Amended by the Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074.24. Power to Arrest: (1) If any person needs to be arrested in the course of investigation of any offense under this Act, the investigating officer shall submit an application to the adjudicating officer for permission to arrest, along with the reason therefor and particulars identifying such person. (2) If the reason for arrest appears reasonable from the application pursuant to sub-section (1), the adjudicating officer may grant permission to issue an arrest warrant. (3) A person for whom an arrest warrant has been issued pursuant to sub-section (2) shall be arrested by the Amended by the Some Nepal Acts Amendment Act Relating to the Civil Code, 2075. security personnel or employees of the Park or Reserve, and produced before the adjudicating officer within twenty-four hours, excluding travel time. (4) Notwithstanding anything contained in sub-section (1), if there is reasonable cause that such person would flee, escape or destroy evidence or proof if not arrested immediately, or if a person absconding in connection with an offense is found, or if a person is found

committing an offense, the Amended by the Some Nepal Acts Amendment Act Relating to the Civil Code, 2075. authorized officer shall immediately issue an emergency arrest warrant, arrest such person, and produce him along with the arrested person before the adjudicating officer for approval. (5) If, during or after arrest pursuant to sub-sections (3) and (4), the offender or his accomplice creates a disturbance to prevent capture or to help escape, or there is a situation where escape is likely or the life of the arresting person is at risk, and there is no option but to use weapons, the employee going to make the arrest may fire aiming as far as possible below the knee. If death occurs as a result of firing in such manner, no liability shall attach. Added by the Fifth Amendment.24a.

Provisions Relating to Extension of Period: (1) A person arrested under this Act shall be produced before the adjudicating officer for legal proceedings within twenty-four hours, excluding travel time. (2) If the investigation regarding a person arrested pursuant to sub-section (1) cannot be completed within twenty-four hours and it appears necessary to keep him in custody and continue the investigation, the investigating employee shall produce him before the adjudicating officer and may keep him in custody only with the permission of the adjudicating officer. While requesting permission accordingly, the accusation against the person in custody, the basis thereof, the reason for needing to investigate while keeping him in custody, and if his statement has been recorded, the substance of the statement shall be clearly mentioned. (3) If permission to keep in custody is requested pursuant to sub-section (2), the adjudicating officer shall, upon examining the relevant documents, consider whether the investigation has been carried out satisfactorily, and if it appears that the investigation is proceeding satisfactorily, may grant permission to keep in custody for a maximum of forty-five days, at one time or from time to time. Amended by the Second Amendment.25.

Reward to be given: Amended by the Fourth Amendment.(1) A person who provides information leading to the arrest of a person who kills or injures a rhinoceros, tiger, elephant, musk deer, clouded leopard, snow leopard or gaur may be given a cash reward of up to fifty thousand rupees, and a person who provides information leading to the arrest of a person who kills or injures other protected wildlife besides the above-mentioned wildlife may be given a cash reward of up to twenty-five thousand rupees. (2) If a person who provides information leading to the arrest of a person illegally possessing any trophy, or who arrests such person, and such trophy is confiscated and sold by auction, such person may be given fifty percent of the proceeds from the auction sale, or if the trophy cannot be auctioned from the perspective of wildlife conservation, a reward of up to ten thousand rupees considering the condition, importance and quantity of such trophy. (3) Except as mentioned in sub-sections (1) and (2), a person who provides information leading to the arrest of an accused who has committed an offense under this Act may be given a reward of up to one thousand rupees. Added by the Fourth Amendment.25a.

Expenditure for Local Development: From the revenue earned by a National Park, Reserve or Conservation Area, thirty to fifty percent of the amount may be spent Amended by the Some Nepal Acts Amendment Act, 2072. on the community development of local people in coordination with the Local Level. Amended by the Second Amendment.26. Punishment: Amended by the Fourth Amendment.(1) A person who illegally kills, injures, purchases, sells or transfers a rhinoceros, tiger, elephant, musk deer, clouded leopard, snow leopard or gaur, or who possesses, Amended by the Fifth Amendment. purchases, sells or transports a rhino horn, musk pod, snow leopard skin or trophies of other protected wildlife, shall be liable to a fine of Amended by the Fifth Amendment. five hundred thousand rupees to one million rupees or imprisonment for five to fifteen years or both. Added by the Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074.(1a) A person who encroaches upon or occupies any National Park, Wildlife Reserve, Hunting Reserve or Conservation Area in any manner, or sells it, or causes any harm, loss or damage to its natural formation or beauty, shall be liable to imprisonment for up to ten years or a fine of up to one million rupees or both.

Amended by the Fourth Amendment.(2) A person who kills or injures wildlife other than those mentioned in sub-section (1) that are protected shall be liable to a fine of Amended by the Fifth Amendment. one hundred thousand rupees to five hundred thousand rupees or imprisonment for one to ten years or both. Amended by the Some Nepal Acts Amendment Act, 2072.(3) A person who hunts and kills or injures wildlife other than birds and fish within a National Park, Strict Natural Reserve, Wildlife Reserve, Conservation Area or Buffer Zone without a license shall be liable to a fine of twenty thousand to fifty thousand rupees or imprisonment for six months to one year or both. Amended by the Some Nepal Acts Amendment Act, 2072.(4) A person who hunts and kills or injures a protected bird shall be liable to a fine of Amended by the Some Nepal Acts Amendment Act, 2082. twenty thousand to fifty thousand rupees or imprisonment for six months to one year or both. Amended by the Some Nepal Acts Amendment Act, 2072.(5) A person who hunts and kills or injures birds other than protected birds within a National Park, Strict Natural Reserve, Wildlife Reserve, Conservation Area or Buffer Zone without a license shall be liable to a fine of Amended by the Some Nepal Acts Amendment Act, 2082. fifteen thousand to thirty thousand rupees or imprisonment for three to nine months or both.

Added by the Fifth Amendment.(5a) A person committing an offense under clause (b) of sub-section (1) of Section 5 shall be liable to a fine of twenty thousand to fifty thousand rupees or imprisonment for up to one year or both. If forest products have been removed or damaged while committing such offense, additional punishment for that shall also be imposed. Added by the Fifth Amendment.(5b) A person committing an offense under clause (e), (f) or (g) of Section 5 shall be liable to punishment as follows:-

(a) If the loss is up to one thousand rupees, a fine equal to the loss,

(b) If the loss is from one thousand to ten thousand rupees, a fine equal to the loss or imprisonment for up to six months or both,

(c) If the loss exceeds ten thousand rupees, a double fine of the loss or imprisonment for up to one year or both. Added by the Fifth Amendment.(5c) If any person rears or breeds wildlife or operates a zoo without obtaining a license under this Act, such person shall be liable to imprisonment for up to six months or a fine of up to fifty thousand rupees or both. Added by the Fifth Amendment.(5d) If any person attempts to commit any offense under this Act, such person shall, if the attempt is for an offense relating to protected wildlife, be liable to the same punishment as the offender, and if the attempt is for an offense relating to other wildlife, be liable to